ordinance passed by the UP cabinet sought to put the onus of proof on defendants to prove that they had not converted for marriage. It enshrined in law a one- to five-year jail term if they could not do so.[50] 'Love jihad', as an *Organiser* cover story defined it in 2014, refers to what Hindutva groups call a 'trap of Muslim organisations to seduce Hindu girls, to use Hindu women for physical desires, to convert them, to sell them or to use them for terrorist activities'.[51] Legally, the term first appeared in a Kerala High Court judgement in 2009, when Justice K.T. Sankaran asked the government to consider enacting laws to prohibit such 'deceptive' acts.[52] The term is said to have first gained currency among Hindutva groups in Gujarat in 2007, followed by Kerala and Karnataka in 2009.[53] These laws are in addition to the anti-conversion laws that already exist in eight Indian states[54] and the provisions of the Special Marriage Act, 1954, which in any case require details of interfaith couples looking to get married to be displayed on a notice board for a month at the marriage office.[55] For critics like the scholar Christophe Jaffrelot, the new 'love jihad' laws 'illustrate the transition from a de facto to a de jure Hindu Rashtra, something already evident from the Citizenship Amendment Act (2019). This process is bound to transform India officially into an ethnic democracy, like Israel—where mixed marriages are practically impossible.'[56]

While these legislations raised significant questions about individual freedoms on marriage and religion,[57] the final word on these laws is yet to be written. The Allahabad High Court, for example, struck down two previous judgements against interfaith marriages on 24 November 2020, observing that the 'right to choose a partner, irrespective of religion, is intrinsic to the right to life and personal liberty'. The two-judge bench of Justice Pankaj Naqvi and Justice Vivek Agarwal ruled that the previous judgements were 'not laying good law'. Furthermore, they observed that 'none of these judgments dealt with the issue of life and liberty of two mature individuals in choosing a partner or their right to freedom of choice as to whom they would like to live'.[58] This important judgement set up the legal contours of a simmering political debate which is still unfolding. While that debate will go on, whichever way the court